Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

December 21, 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1227 - Demand for settlement

Dear Claims Representative:

Our office represents Michael Wells in connection with the motor vehicle collision that occurred on September 27, 2023. Our client was lawfully making a left turn when your insured failed to yield the right of way and struck the driver's side of our client's vehicle. The police report and the photographs taken at the scene reflect the force of the impact and the damage to both vehicles.

As a direct result of the collision, Michael Wells sustained neck and back strain. Our client experienced immediate pain, stiffness, and reduced range of motion, and was advised by treating providers to attend physical therapy and to limit lifting and driving while recovering. Our client has missed time from work and continues to experience discomfort that interferes with daliy activities.

Liability in this matter is clear. Your insured had a duty to exercise reasonable care and to yield when oncoming traffic was approaching, and the failure to do so caused the collision and our client's injuries. Our client has incurred medical expenses, lost wages, and general damages for pain and suffering.

We therefore demand payment of $114,000.00 to resolve all claims against your insured arising from this incident. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we are authorized to file suit without further notice.

Expert review: Janet Williams, neurologist

Sincerely,

Nina Stewart
Marshall & Dominguez LLP